

TENTATIVE RULINGS

Date: September 25, 2023

#	Case Name	Tentative
1	Droste vs Khalil 2023-01301681	Motion to Strike Complaint Defendant Cheryl Lynn Walsh’s anti-SLAPP Motion to Strike Plaintiff’s Complaint is CONTINUED to November 20, 2023, at 1:45 p.m. in Department C15. Moving Defendant Cheryl Walsh failed to file a proof of service of the moving papers on all parties that have appeared in the action. The moving papers must be served on all parties who have appeared in the action, whether or not the motion seeks relief against such parties. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group 2023) ¶ 9:82.5; see also <i>Code Civ. Proc.</i>, § 1014 [“After appearance, a defendant or the defendant's attorney is entitled to notice of all subsequent proceedings of which notice is required to be given”].) Here, the proof of service for the Motion to Strike only establishes Defendant Cheryl Walsh served Plaintiff and Defendant Nadia K. Starner (pro per). Walsh failed to serve the Motion on Suhail Khalil (pro per) and Linda Gunderson (pro per), who had appeared by the time the Motion was filed. Moreover, on 8-2-23, the Court advanced the anti-SLAPP from 3-24-24 to 9-25-23. Plaintiff was ordered to give notice. On 8-7-23, Plaintiff gave notice of the ruling to all parties who had appeared in the action, but Plaintiff gave notice to numerous Defendants in pro per by electronic service.

		Consent for electronic service of a self-represented party is required under <i>California Rule of Court</i>, rule 2.251(c)(3). Thus, the service of the new hearing date is questionable. Additionally, Plaintiff objects that Defendant’s Motion was 20 pages, which is 5 pages over the maximum length for a memorandum of points and authorities. <i>California Rule of Court</i>, rule 3.1113(d) provides: “Length of memorandum ¶ Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages. In a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 20 pages. No reply or closing memorandum may exceed 10 pages. The page limit does not include the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities, or the proof of service.” <i>California Rule of Court</i>, rule 3.1113(g) provides: “Effect of filing an oversized memorandum ¶ A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper.” “No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.” (California Rule of Court, rule 3.1300(d).) “A trial court has broad discretion under rule 3.1300(d) of the Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission.” <i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765. Here, Defendant Walsh does not present any evidence showing an extended brief was authorized by the court. Plaintiff claims it is prejudiced by the excessive brief. Given that the
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		Complaint is 363 pages long and Defendant used 5 pages more to make arguments in support of its anti-SLAPP, the extra pages are understandable. While the Court admonishes Defendant for its violation of the California Rules of Court, the Court will allow Plaintiff to file an Amended Opposition not to exceed 20 pages in the interest of justice and fairness. Defendant may file an Amended Reply memorandum not exceed 10 pages. The deadlines for these amended filings are per Code. Based on the foregoing, the Court CONTINUES Defendant Cheryl Lynn Walsh's Motion to Strike Complaint to November 20, 2023, at 1:45 p.m. in Department C15. On the court's own motion, the status conference set for November 20, 2023, at 8:30 am is continued to November 20, 2023, at 1:45 pm in C15. Defendant Walsh to give notice.
2	Gregg vs Nelson 2021-01196389	Motion to Abate Action, or in the Alternative Dismiss Action Defendants The Regents of the University of California and Ariana Nelson, M.D.'s Motion to Abate is DENIED. The case is STAYED. The hearing on this motion was continued from 8-7-23. Plaintiff is believed to have passed away on or about 12-27-22. Plaintiff was an attorney and representing himself in this action. Defendants previously served the instant motion by e-service on Plaintiff's law firm's email address, knowing he was deceased. Accordingly, Defendants were ordered to re-serve